

Form 1: Living Trust for One Person

The ¹ _____ Living Trust
your name (or name of trust, if different)

Declaration of Trust

I. Trust Name

This trust shall be known as The ¹ _____ Living Trust.
your name (or name of trust, if different)

II. Trust Property

(A) Property Placed in Trust

¹ _____, called the "grantor or trustee," declares
your name
that ¹ _____ has set aside and holds in The ¹ _____
your name your name (or name of trust, if different)
Living Trust all _____'s interest in that property described in the attached Schedule A. ²
your name

The trust property shall be used for the benefit of the trust beneficiaries and shall be administered
and distributed by the trustee in accordance with this Declaration of Trust.

(B) Additional or After-Acquired Property

The grantor may add property to the trust at any time.

III. Reserved Powers of Grantor

(A) Amendment or Revocation

The grantor reserves the power to amend or revoke this trust at any time during the grantor's lifetime, without
notifying any beneficiary.

(B) Rights to Trust Property

Until the death of the grantor, all rights to all income, profits, and control of the trust property shall be retained by
the grantor.

(C) Homestead Rights

If the grantor's principal residence is held in this trust, grantor has the right to possess and occupy it for life, rent-free
and without charge, except for taxes, insurance, maintenance, and related costs and expenses. This right is intended to give

grantor a beneficial interest in the property and to ensure that grantor does not lose eligibility for a state homestead tax exemption for which grantor otherwise qualifies.

(D) Incapacity of Grantor

If the grantor becomes physically or mentally incapacitated and is no longer able to manage this trust, the person or persons named as successor trustee shall serve as trustee. The determination of the grantor's capacity to manage this trust shall be made by those of the persons listed below who are reasonably available when the successor trustee (or any of them, if two or more are named to serve together) requests their opinion. If a majority of these persons state, in writing, that in their opinion the grantor is no longer reasonably capable of serving as trustee, the successor trustee shall serve as trustee.

5

(names(s) of person(s) to determine incapacity)

The successor trustee shall pay trust income at least annually to, or for the benefit of, the grantor and may also spend any amount of trust principal necessary in the trustee's discretion for the needs of the grantor, until the grantor is no longer incapacitated or until the grantor's death.

(E) Grantor's Death

After the death of the grantor, this trust becomes irrevocable. It may not be altered or amended in any respect, and may not be terminated except through distributions permitted by this Declaration of Trust.

IV. Trustees

(A) Original Trustee

The trustee of The ¹ _____
your name (or name of trust, if different)

Living Trust and all child's trusts created under this Declaration of Trust shall be ¹ _____
your name (or name of trust, if different)

(B) Successor Trustee

Upon the death or incapacity of the trustee, the successor trustee shall be

6

name(s) of successor trustee(s)

6

If _____ is/are
name(s) of successor trustee(s)

unable to serve or continue serving as successor trustee, the successor trustee shall be

6

name(s) of alternate successor trustee(s)

[If you named more than one successor trustee, include ONE of the following two paragraphs here:]

Any of the successor trustees has full and independent authority to act for and represent the trust.

[or]

All of the successor trustees must consent, in writing, to any transaction involving the trust or trust property.

(C) Trustee's Responsibility

The trustee in office shall serve as trustee of all trusts created under this Declaration of Trust, including any child's trust.

(D) Resignation of Trustee

Any trustee in office may resign at any time by signing a notice of resignation. The resignation must be delivered to the person or institution who is either named in this Declaration of Trust or appointed by the trustee under Section IV, Paragraph (E), to next serve as trustee.

(E) Power to Appoint Successor Trustee

If all the successor trustees named in this Declaration of Trust cease to, or are unable to, serve as trustee, any trustee may appoint an additional successor trustee or trustees to serve in the order nominated. The appointment must be made in writing, signed by the trustee, and notarized.

(F) Terminology

In this Declaration of Trust, the term "trustee" includes any successor trustee or successor trustees.

(G) Bond Waived

No bond shall be required of any trustee.

(H) Compensation

No trustee shall receive any compensation for serving as trustee, except that a trustee shall be entitled to reasonable compensation, as determined by the trustee, for serving as a trustee of a child's trust created by this Declaration of Trust, or for serving as trustee because the grantor has become incapacitated.

(I) Liability of Trustee

With respect to the exercise or nonexercise of discretionary powers granted by this Declaration of Trust, the trustee shall not be liable for actions taken in good faith.

V. Beneficiaries

Upon the death of the grantor, the property listed on Schedule A shall be distributed to the beneficiaries named in this section.

(A) Primary and Alternate Beneficiaries

1. **7** _____ shall be given
beneficiary

property identified

If _____ does not survive the grantor,
beneficiary
that property shall be given to _____
alternate beneficiary

2. **7** _____ shall be given
beneficiary

property identified

If _____ does not survive the grantor,
beneficiary
that property shall be given to _____
alternate beneficiary

3. **7** _____ shall be given
beneficiary

property identified

If _____ does not survive the grantor,
beneficiary
that property shall be given to _____
alternate beneficiary

4. **7** _____ shall be given
beneficiary

property identified

If _____ does not survive the grantor,
beneficiary
that property shall be given to _____
alternate beneficiary

5. **7** _____ shall be given
beneficiary

property identified

If _____ does not survive the grantor,
beneficiary

that property shall be given to _____.
alternate beneficiary

(B) Residuary Beneficiary

The residuary beneficiary of the trust shall be ⁸ _____,
residuary beneficiary

who shall be given all trust property not specifically and validly disposed of by Section V, Paragraph (A).

If _____ does not survive the grantor,
residuary beneficiary

that property shall be given to ⁸ _____.
alternate residuary beneficiary

VI. Distribution of Trust Property Upon Death of Grantor

Upon the death of the grantor, the trustee shall distribute the trust property outright to the beneficiaries named in Section V, Paragraphs (A) and (B), subject to any provision in this Declaration of Trust that creates child's trusts or creates custodianships under the Uniform Transfers to Minors Act.

VII. Trustee's Powers and Duties

(A) Powers Under State Law

To carry out the provisions of The ¹ _____
your name (or name of trust, if different)
_____ Living Trust, and any child's trusts created under this Declaration of Trust, the trustee shall have all authority and powers allowed or conferred on a trustee under _____
your state
law, subject to the trustee's fiduciary duty to the grantor and the beneficiaries.

(B) Specified Powers

The trustee's powers include, but are not limited to:

1. The power to sell trust property, and to borrow money and to encumber that property, specifically including trust real estate, by mortgage, deed of trust, or other method.
2. The power to manage trust real estate as if the trustee were the absolute owner of it, including the power to lease (even if the lease term may extend beyond the period of any trust) or grant options to lease the property, to make repairs or alterations, and to insure against loss.
3. The power to sell or grant options for the sale or exchange of any trust property, including stocks, bonds, debentures, and any other form of security or security account, at public or private sale for cash or on credit.

4. The power to invest trust property in property of any kind, including but not limited to bonds, debentures, notes, mortgages, stocks, stock options, stock futures, and buying on margin.
5. The power to receive additional property from any source and add to any trust created by this Declaration of Trust.
6. The power to employ and pay reasonable fees to accountants, lawyers, or investment experts for information or advice relating to the trust.
7. The power to deposit and hold trust funds in both interest-bearing and non-interest-bearing accounts.
8. The power to deposit funds in financial accounts insured or uninsured by the FDIC.
9. The power to enter into electronic fund transfer or safe deposit arrangements with financial institutions.
10. The power to continue any business of the grantor.
11. The power to institute or defend legal actions concerning the trust or grantor's affairs.
12. The power to execute any document necessary to administer any child's trust created in this Declaration of Trust.
13. The power to diversify investments, including authority to decide that some or all of the trust property need not produce income.

(C) Payment by Trustee of the Grantor's Debts and Taxes

The grantor's debts and estate taxes shall be paid by the trustee. The trustee shall pay these from the following trust property: ⁹ _____

_____.

If the property specified above is insufficient to pay all the grantor's debts and estate taxes, the trustee shall determine how such debts and estate taxes shall be paid from trust property.

VIII. General Administrative Provisions

(A) Controlling Law

The validity of The ¹ _____
your name (or name of trust, if different)
Living Trust shall be governed by the laws of _____
your state.

(B) Severability

If any provision of this Declaration of Trust is ruled unenforceable, the remaining provisions shall nevertheless remain in effect.

(C) Amendments

The term "Declaration of Trust" includes any provisions added by amendments.

(D) Accountings

No accountings or reports shall be required of the trustee, except as required by law.

IX. Child's Trust(s)

All trust property left to any of the minor or young adult beneficiaries listed below in Section IX, Paragraph (A), shall be retained in trust for each such beneficiary in a separate trust of this

1

your name (or name of trust, if different)

Living Trust.

Each trust may be identified and referred to by adding the name of that trust's beneficiary to the name of this trust. The following terms apply to each child's trust:

(A) Trust Beneficiaries and Age Limits

A child's trust shall end when the beneficiary of that trust, listed below, becomes 35, except as otherwise specified in this section:

10A

Trust for

Shall end at age

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

(B) Powers and Duties of a Child's Trust Trustee

1. Until a child's trust ends, the trustee may distribute to or use for the benefit of the beneficiary as much of the net income or principal of the child's trust as the trustee deems necessary for the beneficiary's health, support, maintenance, or education. Education includes, but is not limited to, college, graduate, professional, and vocational studies, and reasonably related living expenses.

2. In deciding whether to make a distribution to the beneficiary, the trustee may take into account the beneficiary's other income, resources, and sources of support.

3. Any child's trust income that is not distributed to a beneficiary by the trustee shall be accumulated and added to the principal of the trust for that beneficiary.

4. The trustee of a child's trust is not required to make any accounting or report to the trust beneficiary.

(C) Assignment of Interest of Beneficiary Prohibited

The interests of the beneficiary of a child's trust shall not be transferable by voluntary or involuntary assignment or by operation of law before actual receipt by the beneficiary. These interests shall be free from the claims of creditors and from attachments, execution, bankruptcy, or other legal process to the fullest extent permitted by law.

(D) Compensation of Trustee

Any trustee of a child's trust created under this Declaration of Trust shall be entitled to reasonable compensation out of the trust assets for ordinary and extraordinary services, and for all services in connection with the termination of any trust.

(E) Termination of a Child's Trust

A child's trust shall end when any of the following events occurs:

1. The beneficiary reaches the age specified in Section IX, Paragraph (A). If the trust ends for this reason, the remaining principal and accumulated income of the trust shall be given outright to the beneficiary.
2. The beneficiary dies. If the trust ends for this reason, the trust property shall pass to the beneficiary's heirs.
3. The trustee distributes all trust property under the provisions of this Declaration of Trust.

X. Custodianships Under the Uniform Transfers to Minors Act

1. All property ^{10B} _____ becomes entitled to
beneficiary
under this trust document shall be given to _____
custodian's name
as custodian for _____
beneficiary
under the _____ Uniform Transfers to Minors Act, until
state

beneficiary
reaches age _____.

2. All property ^{10B} _____ becomes entitled to
 beneficiary _____
 under this trust document shall be given to _____
 custodian's name _____
 as custodian for _____
 beneficiary _____
 under the _____ Uniform Transfers to Minors Act, until
 state _____
 beneficiary _____
 reaches age _____.
 beneficiary _____

3. All property ^{10B} _____ becomes entitled to
 beneficiary _____
 under this trust document shall be given to _____
 custodian's name _____
 as custodian for _____
 beneficiary _____
 under the _____ Uniform Transfers to Minors Act, until
 state _____
 beneficiary _____
 reaches age _____.

Certification by Grantor

I certify that I have read this Declaration of Trust and that it correctly states the terms and conditions under which the trust property is to be held, managed, and disposed of by the trustee, and I approve the Declaration of Trust.

Dated: _____

 Grantor and Trustee

[Attached: Notary's Acknowledgment]

Schedule A ²

All the grantor's interest in the following property:

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